

POLITY 55

CONSTITUTIONAL INTERPRETATION DOCTRINES

Text -> trigger -> test -> holding -> effect -> limit

01 FOUNDATION

Constitutional supremacy

Arts 13 / 32 / 226

Art 141 ratio

Doctrine != Article

Start with enacted authority. Route the dispute to meaning, competence, rights, amendment, precedent, time or remedy.

ANSWER-GRABBING LINE: Start with enacted authority. Route the dispute to meaning, competence, rights, amendment, precedent, time or remedy.

02 METHODS

1

Text in context

2

Structure

3

Purpose

4

History + living application

Constituent materials inform; adopted text controls. Dynamic application cannot become free policy.

ANSWER-GRABBING LINE: Constituent materials inform; adopted text controls. Dynamic application cannot become free policy.

03 RIGHTS VALIDITY

Severability: intent + remainder

Eclipse: classical old-law dormancy

Non-waiver: public policy

R.M.D. / Bhikaji / Basheshar

Keep removal, enforceability and consent analytically separate.

ANSWER-GRABBING LINE: Keep removal, enforceability and consent analytically separate.

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ANSWER-GRABBING LINE: Keep removal, enforceability and consent analytically separate.

04 COMPETENCE

1. Pith and substance



2. Incidental / ancillary



3. Colourability != motive



4. Territorial nexus

ANSWER-GRABBING LINE: Arts 245-246 and the Seventh Schedule: true nature first, disguised or remote power fails.

05 REPUGNANCY

Same Concurrent field

Direct conflict

Occupied field

Art 254(2) assent

Deep Chand and M. Karunanidhi: Union priority only to conflict; Parliament may later override.

ANSWER-GRABBING LINE: Deep Chand and M. Karunanidhi: Union priority only to conflict; Parliament may later override.

06 HARMONY + SAVING

1

Harmonious construction

2

Federal supremacy last

3

Read down vs sever

4

Shreya: no rewriting

Preserve both provisions and legislative choice only within textually lawful bounds.

ANSWER-GRABBING LINE: Preserve both provisions and legislative choice only within textually lawful bounds.

ANSWER-GRABBING LINE: Preserve both provisions and legislative choice only within textually lawful bounds.

07 PRECEDENT + TIME

Ratio / obiter

Per incuriam

Sub silentio

Golaknath prospective effect

Larger bench controls. Temporal tailoring is express; it never licenses lower-court disobedience.

ANSWER-GRABBING LINE: Larger bench controls. Temporal tailoring is express; it never licenses lower-court disobedience.

08 BASIC STRUCTURE

1. Kesavananda 1973

2. Minerva Mills 1980

3. Waman Rao / I.R. Coelho

4. NJAC 2015

ANSWER-GRABBING LINE: Article 368 permits change, not destruction; post-24 April 1973 Ninth Schedule insertions remain reviewable.

09 RIGHTS STANDARDS

Presumption

Classification

Manifest arbitrariness

Proportionality ladder

Match review intensity to the defect; justification review is not preferred-policy substitution.

ANSWER-GRABBING LINE: Match review intensity to the defect; justification review is not preferred-policy substitution.

10 MORALITY + CHANGE

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NCT Delhi, Navtej and Puttaswamy: values require text, precedent, competence and remedy.

ANSWER-GRABBING LINE: NCT Delhi, Navtej and Puttaswamy: values require text, precedent, competence and remedy.

11 RELIGIOUS RIGHTS

Arts 25-26

Shirur Mutt

Secular activity + limits

Reserved 14 May 2026

ERP is a separate rights doctrine. A reserved nine-judge judgment is not a new final holding.

ANSWER-GRABBING LINE: ERP is a separate rights doctrine. A reserved nine-judge judgment is not a new final holding.

12 EXAM ROUTE

1. Article

2. Trigger + exact test

3. Holding + application

4. Effect + limit

ANSWER-GRABBING LINE: Write a legal route, not a catalogue. Choose the narrowest remedy and a qualified conclusion.